

WRITTEN SUBMISSIONS · 25 JUN 1998

Written submissions in appeal summary proceedings

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Pleadings / procedural document	The Paris Court of Appeal	25 Jun 1998
PARTIES		
Bernard Collorafi v. McDonald's France		

SUMMARY SHEET

Written submissions in summary proceedings on appeal — 25 June 1998

Overview: written submissions in summary proceedings on appeal filed on behalf of the companies SEBOL, B et O and LES PINS and of Mr Bernard Collorafi, dated 25 June 1998.

Key points

On the basis of article 524 of the NCPC, the written submissions ask the First President to suspend the provisional enforcement of the judgment delivered by the Paris Commercial Court on 18 May 1998, invoking manifestly excessive and irreversible consequences. They detail the burdens that SEBOL would bear in the event of enforcement (unpaid fees, interest, daily periodic penalty and occupation indemnity). The companies offer to deposit into escrow the proportional fees due between 1 January and 30 April 1998:

- SEBOL: 405,679 F
- B et O: 731,718 F
- LES PINS: 443,693 F

followed by the subsequent monthly fees. They ask for McDonald's claims to be dismissed and 10,000 F per party under article 700.

Significance

Application seeking to suspend the provisional enforcement of the orders to pay during the appeal proceedings.

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Source: bernardcollorafi.org/en/documents/summary-proceedings-appeal-submissions-paris-suspension-enforcement-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.